

STANDING ORDER NO. 351/2009

ACTION TO BE TAKEN AGAINST DEFACEMENT OF PUBLIC PROPERTY

1. The Delhi Prevention of Defacement of Property Act, 2007 has been enacted on 17th January 2009 and has repealed the earlier 'The West Bengal Prevention of Defacement of Property Act, 1976' which was extended to Delhi. The Delhi Prevention of Defacement of Property Act, 2007 is more stringent and gives wider powers to the police to deal with the menace of defacement of the govt./private properties. This Act prescribes a punishment of imprisonment for a term which may extend to 1 year or with fine which may extend to 50,000/- Rupees or both and makes the offences under this Act "Cognizable" whereas the previous Act only prescribed a punishment of imprisonment for a term which may extend to 6 months or with fine which may extend to the thousand Rupees or both.
2. "Property" as defined in the Act includes any building, hut-structure, wall, tree, fence, post, pole or any other erection; "Defacement" includes impairing or interfering with the appearance or beauty, damaging, disfiguring, spoiling or injuring in any other way whatsoever and the word "deface" shall be construed accordingly.
3. It is also emphasized that while lodging FIR for the violations of the Delhi Prevention of Defacement of Property Act, 2007, the following aspects must be taken into account:-
 - (A) Complete description of buntings or poster or hoardings, writing on trees, electric poles, roundabouts, any wall or a building such as:
 - Contents of the subject matter.
 - Name and other details of pleader / proposer.
 - Name of advertising agency.
 - Name of printing press.
 - Who placed the orders in the printing press/ printing of the posters?
 - Seizures of records of printing press.
 - Relationship of the person getting the posters printed and the beneficiaries.
 - Name of person for whom appeal is made.
 - Name of party for whom appeal is made.
 - Details of person whose photographs are appearing.
 - Records of printing press.
 - Who placed the orders?
 - Relationship of above with beneficiary.

- (B) Complete address/ location of the subject matter warrants action under the Act be mentioned.
 - (C) It must be specifically mentioned in the FIR if any of the above said details are found missing especially details of printer/publisher.
 - (D) The affected area of property be got properly photographed ensuring each and every content of the matter in question is legibly covered and it is also clear that the property is govt./private which is defaced.
 - (E) If it is a public building / govt. etc., statement of caretaker, chowkidar etc. should also be recorded during investigation.
4. The Act provides that where any offence committed for the benefit of some other person or a company or other body corporate or an association of persons (whether incorporated or not), then, such other person and every president, chairman, director, partner, manager, secretary, agent or any other officer or persons concerned with the management thereof, as the case may be, shall, unless he proves that the offence was committed without his knowledge or consent, be deemed to be guilty of such offence. In view of this, the beneficiary must be given an opportunity to prove that the offence was committed without his knowledge or consent. The statement of such beneficiary or his written submissions should be carefully considered with utmost circumspection before a decision is arrived at regarding the guilt or otherwise of the beneficiary.
 5. Section-3 of the Act speaks of defacement of "any property in public view by writing or marking with ink, chalk, paint or any other material except for the purpose of indicating the name and address of the owner of occupier of such property, shall be punishable—". There is no distinction made in the Act between public property and private property. However, before taking action against any defacement of private property, the view of the owner must be taken and the matter should be put up on file to Deputy Commissioner of Police for a decision before registration of a case. However, where defacement of public property is concerned, action as indicated in the Act may be taken suo-mtuo by the competent police officer.
 6. It may be mentioned that the Hon'ble High Court of Delhi in Writ Petition (Civil) No. 18205/2005 – Monika Arora Vs. UOI & Ors. observed that no serious efforts are being made by the authorities to prevent defacement of wall of private houses, bungalows, public institutions and other buildings by individual organizations and political parties who attempt to propagate either their candidature for elections or for organizing rally / political meetings by putting their posters and hoardings on the wall of public places. Such activities are rampant at traffic signals, traffic signs and electric/ telephone poles which hamper smooth flow of traffic and are traffic hazards.

All concerned should, therefore, ensure that effective action is taken against defacement of public property.

7. This supersedes existing standing order No. 351/2008 issued vide No. 37556-655/C&T/AC-V/PHQ, dated 8/7/2008 and Circular issued vide No. 61477-576/C&T/AC-V/PHQ, dated 3/11/2008.



(Yudhbir Singh Dadwal)
Commissioner of Police:
Delhi.

O.B. NO.66/RB/PHQ Dated 4-6-2009

No. 10602-10850/Record Branch/PHQ, dated Delhi, the 4-6-2009
